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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

(Criminal Jurisdiction)

Date : 16.10.2026

PRESENT

The Hon`ble Mr.Justice K.MURALI SHANKAR

CRL OP(MD). No.23761 of 2026

Aravindraj

... Petitioner/
Accused No.1

Vs

The State of Tamil Nadu rep by
The Inspector of Police,
Sivakasi East Police Station,
Virudhunagar District.
(Crime No.448 of 2026)

... Respondent/
Complainant

For Petitioner : Mr.K.Kumaran,
Advocate

For Respondent : Mr.D.Rajaboopathy,
Government Advocate (Crl.Side)

PETITION FOR BAIL Under Section 483 of B.N.S.S.

PRAYER :-

For Bail in Crime No.448 of 2026 on the file of the Respondent Police.

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ORDER : The Court made the following order :-

The petitioner / first accused, who was arrested and remanded to judicial custody on 24.09.2026 for the offences punishable under Sections 296(b), 115(2), 118(1) and 351(3) BNS, in Crime No.448 of 2026, on the file of the respondent police, seeks bail.

2. The case of the prosecution is that the second accused, who is the wife of the defacto complainant, had illegal relationship with the petitioner and that on 06.08.2026, as per the direction of the second accused, the defacto complainant went to the place of occurrence where the petitioner abused the defacto complainant in filthy language and assaulted him. Hence, the complaint.

3. The learned counsel appearing for the petitioner would submit that the petitioner is an innocent and he has not committed any offence as alleged by the prosecution. He would further submit that the second accused was granted anticipatory bail

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and that the petitioner is in judicial custody from 24.09.2026.

4. The learned Government Advocate (Criminal Side) appearing for the respondent police would submit that the injured was already discharged from the hospital and that the petitioner is having one previous case for the offence under Section 506(2) IPC.

5. Considering the above facts and circumstances and also the facts that the petitioner is in judicial custody from 24.09.2026 and that the injured was already discharged from the hospital, this Court is inclined to grant bail to the petitioner subject to the following conditions:

6. Accordingly, the petitioner is ordered to be released on bail on his executing a bond for a sum of **Rs.25,000/- (Rupees Twenty Five Thousand only)** with two sureties each for a like sum to the satisfaction of the learned Judicial Magistrate No.II, Sivakasi,

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and on further conditions that:

(i)the sureties shall affix their photographs and left thumb impression in the surety bond and the Magistrate / concerned court may obtain a copy of their Aadhar card or Bank Pass Book to ensure their identity;

(ii)the petitioner shall report before the respondent police daily at 10.30 a.m., for a period of one month and thereafter as and when required for interrogation;

(iii)the petitioner shall not tamper with the evidence or witness either during investigation or trial;

(iv)the petitioner shall not abscond either during investigation or trial;

(v)On breach of any of the aforesaid conditions, the learned Magistrate / Trial Court is entitled to take appropriate action against the petitioner in accordance with law as if the conditions have been imposed and the petitioner is released on bail by the learned Magistrate / Trial Court himself as laid down by the Hon'ble Supreme Court in ***P.K.Shaji vs. State of Kerala [(2005)AIR SCW 5560];***

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(vi)If the accused thereafter abscond, a fresh FIR can be registered under Section 269 BNS, 2023.

(K M S J)
16.10.2026

CSM

TO
1. The Judicial Magistrate No.II,
   Sivakasi.

2. Do through
   The Chief Judicial Magistrate,
   Virudhunagar.

3. The Superintendent,
   Sub Jail,
   Srivilliputtur.

4. The Inspector of Police,
   Sivakasi East Police Station,
   Virudhunagar District.

5. The Additional Public Prosecutor,
   Madurai Bench of Madras High Court,
   Madurai.

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K.MURALI SHANKAR,J

CSM

ORDER
IN
CRL OP(MD) No.23761 of 2026

Date : 16.10.2026